

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN BOTSWANA

Complete Community Opposition How-To

This guide is built around Botswana's three distinctive strengths — an unusually independent and respected judiciary, land mostly held as tribal land in trust and administered by Land Boards, and a living tradition of community deliberation in the kgotla — and it names the tools you'll meet (the courts and the Constitution, the tribal-land system and the Land Boards, the kgotla, the environmental authorisation) in plain words.

INTRODUCTION & FRAMEWORK

The clearest proof comes from the sands of the Central Kalahari, where the **San** — the Basarwa, among the oldest peoples on Earth — were driven from their ancestral land. Between 1997 and 2005 the government forced more than a thousand San out of the **Central Kalahari Game Reserve**, capping their water borehole, cutting off food rations and hunting licences to make return impossible. But the San did not accept it. Backed by lawyers and an international campaign, they took their own government to court, and on **13 December 2006 the High Court ruled the eviction "unlawful and unconstitutional"** and held that they had the right to live on their ancestral land inside the reserve — one judge warning that cutting off food and hunting was "tantamount to condemning" them "to death by starvation." When the government then refused to let them reopen their capped borehole, they went back to court, and in **January 2011 the Court of Appeal ruled they could use their old well and sink new ones**, condemning the state's "degrading treatment." A people with almost no power beat one of Africa's most admired governments, in that government's own courts, because they organised, endured, and used the law.

The San who took their own government to court drew on tools available to communities across Botswana — a genuinely strong toolkit, unusual for the region. The **courts and the Constitution**, upheld by an independent, respected judiciary, can strike an unlawful action, as they struck the San's eviction; protest, petition, and litigation are lawful. Most land is **tribal land** held in trust and allocated by **Land Boards**, whose decisions can be scrutinised. The **kgotla** is a real forum for community deliberation and consultation. And the **environmental authorisation** process governs projects. But these tools have real limits, and this guide states them plainly. The San's victory was landmark but **partial and hard-won**: only 189 of the 243 named applicants were allowed back, hunting still required government licences, and services stayed withheld — which is why the community had to return to court over water, winning again in 2011. The fight took **years and international backing** — their lawyer Gordon Bennett and allies such as Survival International carried it to the world. And it ran against a **powerful government** with the pull of **diamonds** behind the removals. So aim for what these levers can deliver, knowing the win may be partial, and settling in for the long, patient fight the courts and the coalition demand.

The Whole Strategy in One Idea

A powerful project or eviction looks unstoppable, but it is a chain of allocations, authorisations, and lawful limits, and a chain breaks at its weakest link. A Botswana fight turns on the **courts and the Constitution** (an independent judiciary that struck the San's eviction); on the **tribal-land system and the Land Boards**; on the **kgotla** consultation; and on the **environmental authorisation**. Every one of those is a link you can grab — and the independent courts are the one that beat one of Africa's most admired governments. **Find**

the one closest to your hand and pull.

Be Honest About Which Fight You're In

Before you spend months — or years — on this, work out your real situation:

- **If a right or a law is breached, the independent courts are your sharpest lever** — the San took their own government to court and won, twice.
- **If it's about land, the tribal-land system and the Land Boards are yours to scrutinise** — most land is community-held in trust, allocated by Land Boards.
- **If consultation was skipped, the kgotla is a real forum to demand** — Botswana has a living tradition of community deliberation.
- **If it's a big, government-backed project, expect a long, partial fight** — the San's win took years, international backing, and a return to court, and was only partial.

Read the whole guide once before you move. Two habits run through it: **use the independent courts and the Constitution to vindicate a right or strike an unlawful action**, and **use the tribal-land system, the Land Boards, and the kgotla for land and consultation** — with the endurance a long, partial fight demands. That's how the San beat their own government.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The government drives major projects, but it is bound by the **Constitution** and an unusually **independent judiciary** that can strike an unlawful action. Most land is **tribal land** held in trust and allocated by **Land Boards**, whose allocations can be scrutinised. The **kgotla** is a genuine forum for community consultation. And projects need an **environmental authorisation**. Know which of these you can reach — the independent courts are the sharpest, the Land Boards and kgotla the most everyday.

How a Project Moves — and Where You Jump In

The land allocation. A project needs land, allocated by a **Land Board**. *Your opening:* scrutinise and challenge an improper allocation.

The consultation (kgotla). *Your opening:* demand a proper **kgotla** consultation, and put your objections on the record.

The environmental authorisation. *Your opening:* attack a defective or skipped authorisation.

The rights and the courts. *Your opening — the sharpest:* a breach of a constitutional right or the law, taken to the independent courts, as the San took their eviction.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and what it needs** — the land allocation, the authorisation, the government's role. **What right or law it breaches** — because the independent courts can strike an unlawful action, as with the San. **What the real driver is** — the diamonds behind the San's removals show that naming the true interest matters.

Who's Supposed to Be Watching

Each is an ally or an arena. The **independent courts** can strike an unlawful action. The **Land Boards** allocate and can be scrutinised. The **kgotla** is the consultation forum. The **environmental authorities** run the authorisation. And Botswana's **affected communities, lawyers, civil society, and international allies** are the forces that reach furthest — the coalition that beat the government in its own courts.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a right or law is breached, whether the land and consultation levers fit, and whether you can endure a long, partial fight.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Demand a proper kgotla consultation	20–45%	weeks–months	low	On record; a fairer process
Scrutinise / challenge a Land Board allocation	25–50%	months–yr	low–mod	An improper allocation undone
Attack the environmental authorisation	25–50%	months–yr	low	A defective authorisation quashed
Court challenge (constitutional right / law)	35–60%	1–3 yr	mod	An unlawful action struck (the San)
Mobilisation + international attention	30–55%	months–years	low	Pressure; a national/global cause
Return to court (partial win)	30–55%	1–2 yr	mod	A partial win enforced/extended (2011)
Everything together (courts, land, kgotla, attention)	40–65%	years	mod	An eviction or project stopped/reshaped
Against a powerful, diamond-backed project	20–45%	years	mod	A partial but real vindication

The levers that move the needle most are the **independent courts and the Constitution**, backed by the **Land Boards, the kgotla, and international attention**. The San case shows the ceiling (a powerless people beating one of Africa's most admired governments in its own courts, twice) and the honest floor (the win was partial — 189 of 243 back, services withheld — took years and a return to court, and ran against the pull of diamonds). So aim for a right vindicated, an allocation challenged, a consultation forced, and a project stopped or reshaped — expecting a long, partial fight.

On cost: the kgotla and objections are cheap; scrutinising Land Board allocations and litigation cost more, though international allies helped carry the San's case. The great strength is an independent judiciary plus community-held land and a real consultation forum; the great requirement is endurance, because even a landmark win here may be partial and need a return to court.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this right breached, this Land Board allocation, this skipped kgotla — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project or action, the company or government body, and the real driver (as diamonds drove the San's removals).

2. What right, law, or land does it touch? Whether it breaches a **constitutional right** or the law (the courts), touches **tribal land** and a **Land Board allocation**, or skipped a **kgotla** consultation. **A breach of a right or the law is your sharpest lever**, as with the San's eviction.

3. What stage is it at, and what's the next opening? A Land Board allocation, a kgotla, an environmental authorisation, an eviction. These are the openings.

4. What harm does it do? The eviction, the loss of land or livelihood, the environmental damage — the concrete harm to document, as the San documented the capped borehole and cut rations.

5. Who's your coalition — and can you endure? The **affected community, lawyers, civil society, and international allies** (like Survival International for the San) — and an honest read of the long, partial fight ahead.

What this looks like in real life. A government-backed project would evict a community from its ancestral land, driven by a resource interest, without proper consultation. The five questions yield: the government and the resource driver; a breach of a constitutional right and tribal land (your sharpest levers); a Land Board allocation or eviction in play; the documented harm of the eviction; and a coalition of lawyers and international allies for a long fight. That's the San pattern — take the rights breach to the independent courts, scrutinise the land and the consultation, and endure.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and the San's proof won in court. Build it in three layers.

Layer one: the right and the breach. Document the **constitutional right or law breached** — the unlawful eviction, the denied consultation, the improper allocation — because the independent courts can strike an unlawful action, as they struck the San's eviction.

Layer two: the harm. Document the **concrete harm** — the eviction, the capped borehole, the cut rations, the lost land or livelihood, the environmental damage — with dated evidence and testimony, the human core the courts and the world respond to.

Layer three: the land and process map. Get the **Land Board allocation, the kgotla record, and the environmental authorisation**, and map the project over the tribal land and the community, so the breach and the harm are undeniable. Walking into the courts, the Land Board, the kgotla, or the world with the documented breach and harm is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The right or law breached** — the unlawful eviction, the denied consultation, the improper allocation.

- **The concrete harm** — the eviction, the water, the rations, the lost land — with dated evidence and testimony.
- **The Land Board allocation and the kgotla record** — from the tribal-land system.
- **The environmental authorisation** — required for projects.
- **The real driver** — the resource interest behind it, as diamonds drove the San's removals.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; lawyers, the community, and international allies give you the power that beat the government in its own courts. Build in four moves.

Root it in the affected community. The San's fight was the community's own — its ancestral land, its water, its way of life. Root the effort there, in the people whose rights and land are at stake.

Get lawyers early — the courts are your sharpest lever. The San won because they took their own government to court, with lawyers like Gordon Bennett. Reach lawyers who can bring a constitutional case before Botswana's independent, respected judiciary.

Use the kgotla and scrutinise the Land Board. Demand a proper **kgotla** consultation, and scrutinise the **Land Board allocation** — the community-land levers that many neighbours lack. Put your objections on the record there.

Build to last, with international allies. The San's fight took years, a return to court, and international backing (Survival International). Build clear roles, a secure archive, a way to decide together, international allies, and the endurance for a long, partial fight that may need a return to court.

STEP 4: THE COURTS, TRIBAL LAND & THE KGOTLA

Botswana's sharpest levers are the independent courts and the Constitution, backed by the tribal-land system and the kgotla.

The Independent Courts and the Constitution — the Sharpest Lever

The San lever: Botswana has an unusually **independent and respected judiciary** that can strike an **unlawful or unconstitutional** action. The San took their own government to court and won a ruling that their eviction was "unlawful and unconstitutional," then returned and won again over water. A breach of a constitutional right or the law, taken to these courts, is Botswana's sharpest weapon.

The Tribal-Land System and the Land Boards

Most land is **tribal land** held in trust and allocated by **Land Boards**. Scrutinise and challenge an **improper allocation** — the community-held-land lever that gives Botswana communities a standing many neighbours lack.

The Kgotla and the Environmental Authorisation

Demand a proper **kgotla** consultation — Botswana's living forum for community deliberation — and put your objections on the record. And attack a defective or skipped **environmental authorisation**. These build toward the decisive court case.

The Honest Limits

Straight talk: the independent courts, the tribal-land system, and the kgotla are powerful, but a win may be partial (as the San's was — 189 of 243 back, services withheld), takes years and often international backing, and runs against a powerful, resource-driven government. So use the levers — the courts, the Land Boards, the kgotla, and the authorisation — endure, be ready to return to court, and count a right vindicated, an allocation challenged, a consultation forced, and a project stopped or reshaped as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

An eviction becomes an unconstitutional act. Not "we don't want to move" but *"this eviction is unlawful and unconstitutional — we have the right to our ancestral land,"* as the San proved.

Cut services become degrading treatment. *"Capping our water and cutting our food is degrading treatment the court will not allow,"* as the Court of Appeal held.

An improper allocation becomes a challenge. *"This Land Board allocation was improper — it can be undone."*

A skipped kgotla becomes a demand. *"We were never properly consulted at the kgotla — as our tradition and the process require."*

Match it to the venue: the rights breach and the degrading treatment to the independent courts; the allocation to the Land Board; the consultation to the kgotla; the harm and the cause to the press and international allies.

STEP 5: MEDIA STRATEGY

In Botswana, national and international attention is a real lever — the San's fight became a global cause that helped sustain a years-long battle — and it reaches a government that values its admired reputation. A free press and international allies make the media front reach far.

Lead with the right and the human harm, not procedure. Not "the allocation was flawed" but "a people driven from their ancestral land, their water capped and their food cut off — and vindicated by their own country's courts." Use your strongest material: the documented breach, the human harm, and the court rulings.

Work several audiences at once. Botswana's press and public build the pressure; international attention (and allies like Survival International) reach a government that guards its admired name. Make it easy: clear summaries, the human story, the court findings.

Two hard rules. Accuracy above all — one exaggeration can discredit a rights case. And centre the affected community, whose land, water, and way of life are the human heart of the fight.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Demanding a proper kgotla consultation.

Subject: Consultation on [project] — [community].

"We, the community of [place], request a proper kgotla consultation on [project], as our tradition and the process require: [specifics]. [Contact.]"

8B — Scrutinising a Land Board allocation.

Subject: Land Board allocation for [project].

"We, [group], request the Land Board allocation and records for [project] on our tribal land, and question its propriety: [specifics]. [Contact.]"

8C — To a lawyer (court challenge).

Subject: Constitutional challenge — [project / eviction].

"Our community faces [an unlawful eviction / a rights breach / an improper allocation]: [specifics]. As the San did in the Central Kalahari case, we ask your advice on a challenge before the courts. [Contact and evidence summary.]"

8D — Challenging the environmental authorisation.

Subject: Environmental authorisation for [project].

"We, [group], submit that the environmental authorisation for [project] is [defective / absent]: [specifics]. We ask that it be refused or reassessed. [Attach evidence.]"

8E — To international allies.

Subject: Our land and rights threatened — [community], Botswana.

"Our community faces [eviction / a rights breach] on our ancestral land. As Survival International helped the San, we ask your help to carry our cause to the world. [Contact and evidence summary.]"

8F — To the government / company.

Subject: Unlawful action and legal risk — [project].

"We are the community affected by [project / eviction] at [location]. It breaches our rights and our tribal land, and — as the Central Kalahari case showed — faces challenge in Botswana's independent courts. [Contact and evidence summary.]"

8G — Letter to the (international) press.

Subject: A community driven from its ancestral land in Botswana.

"[Project / eviction] threatens our ancestral land, water, and way of life. We can provide the documented breach, the human harm, and — as with the San — a case for the courts. [Contact.]"

8H — Uniting the community.

Subject: Our land, our rights — let's use the law, as the San did.

"[Project / eviction] threatens our land and rights. The San, with almost no power, beat their own government in its own courts. With the courts, the Land Board, the kgotla, and endurance, we can defend our land too."

[Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean — though the fight is long — do these six things, in order:

1. **Document the right breached and the concrete harm — the eviction, the water, the land.**
2. **Demand a proper kgotla consultation (8A).**
3. **Scrutinise the Land Board allocation (8B).**
4. **Get lawyers to take a rights breach to the independent courts (8C).**
5. **Enlist international allies, as the San did (8E/8G).**
6. **Endure — and be ready to return to court, as the San did over water.**

Even lean, those six use the courts, the land system, and the kgotla — the San template.

WHEN THE SYSTEM IS TILTED

Botswana's tools are strong, but a powerful, resource-driven government can push, and you must plan for it.

When the government is behind the project. Don't assume it's hopeless — the San beat one of Africa's most admired governments in its own courts. Use the independent judiciary, and endure.

When a win is only partial. The San's victory was partial — only 189 of 243 returned, services withheld. Expect a partial win, and be ready to return to court, as they did over water in 2011.

When the fight is long. The San's took years and international backing. Build a durable coalition and international allies, and settle in for the long haul.

When a resource interest drives it. Diamonds drove the San's removals. Name the true driver, and build the rights and land case that an independent court can vindicate regardless.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Botswana is, by regional standards, well-governed, but the pull of resource interests (as with the diamonds behind the San's removals) creates real risks of capture, so this matters.

How to spot it. Evictions or allocations to clear the way for a resource interest; Land Board allocations to the connected; consultation skipped or stage-managed; benefits to the connected while communities lose their land.

Who's supposed to guard against it. Botswana's audit and oversight bodies examine public money and conduct. The **independent courts** can strike an unlawful action. The **Land Boards** and the **kgotla** are the land and consultation guardians to press. And Botswana's **civil society, press, and international allies** have exposed captured decisions.

How to fight it safely. Document precisely and factually — how an allocation or eviction served a hidden interest, who benefits, what the Constitution and the process required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the courts, the audit bodies, and

trusted journalists rather than making accusations you can't back. Pair the exposure with the rights and land case.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documented breach and harm build your case; the courts and the Constitution aim it; the community, lawyers, and international allies are the muscle; the Land Boards, the kgotla, and the authorisation press it; the world's attention reaches it. Together they multiply. One at a time, they stall — and the fight is long.

Early on (weeks 1–8): document the right breached and the harm; demand a proper kgotla consultation; scrutinise the Land Board allocation; get lawyers; enlist international allies.

In the thick of it (1–3 yr): take the rights breach to the independent courts; challenge the authorisation; make a national and global cause.

The long haul (years): endure, and be ready to return to court over a partial win, as the San did; keep the coalition and allies alive; hold the line for a right vindicated, an allocation challenged, a consultation forced, and a project stopped or reshaped.

FINAL ASSESSMENT

Stopping a destructive project or eviction in Botswana can be done — a people with almost no power beat one of Africa's most admired governments in that government's own courts, twice. Hold both truths. Botswana's distinctive power is real: an unusually independent and respected judiciary that can strike an unlawful action, land mostly held as tribal land in trust and allocated by Land Boards, and a living tradition of community deliberation in the kgotla — levers many neighbours lack. And the constraints are real: the San's win was partial (only 189 of 243 returned, services withheld), took years and international backing and a return to court, and ran against a powerful government with diamonds behind the removals.

Here's the discipline that wins what can be won. Document the right breached and the concrete harm — the eviction, the capped water, the cut rations, the lost land. Demand a proper kgotla consultation and scrutinise the Land Board allocation, the community-land levers that give Botswana communities a standing many neighbours lack. Then get lawyers and take the rights breach to Botswana's independent, respected judiciary, which struck the San's eviction as "unlawful and unconstitutional" and later condemned the state's "degrading treatment." Enlist international allies, as the San enlisted Survival International, to carry the cause to the world. And endure — because even a landmark win here may be partial, and may need a return to court, as the San's did over water. Count a right vindicated, an allocation challenged, a consultation forced, and a project stopped or reshaped as wins. That's what the San did — the independent courts, the land system, the kgotla, and years of endurance together. So can you.